

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

ACCESS ONE TRANSPORT, INC., *Complainant*

v.

CMA CGM S.A., *Respondent*.

DOCKET NO. 24-18

Served: June 7, 2024

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

SCHEDULING ORDER

On June 3, 2024, the parties filed a joint status report and proposed discovery schedule (“JSR”). The parties state that they have discussed “initial disclosures, expert witnesses, potential discovery disputes, and the use of other documents or techniques which may assist with limiting discovery,” and have had a preliminary conference with the Commission’s Office of Consumer Affairs and Dispute Resolution Services. JSR at 1-2. Initial disclosures should have already been exchanged. Moreover, the parties have agreed to an informal exchange of discovery before beginning formal discovery, which they state “should help the parties focus formal discovery requests moving forward.” JSR at 2.

The parties request an extra month to complete discovery, propose prehearing briefs, and a prehearing conference on March 11, 2025. This schedule would not permit an initial decision to be issued by April 28, 2025, as required by the Commission. The parties do not show why an oral hearing is necessary. The parties’ request for an oral hearing is denied. *See* 46 C.F.R. § 502.62(a)(5).

The parties’ discovery schedule will be permitted if the parties will be ready to brief the merits of the proceeding consistent with the schedule below. Because the parties have requested an extended discovery period, no further extensions will be permitted. The parties should be prepared to proceed to final briefing with the discovery they have obtained by the close of discovery on November 27, 2024. Moreover, deadlines have been adjusted to accommodate weekends and holidays. Any further delays would extend the case past the time frame provided by the Commission.

The parties are hereby **ORDERED** to follow this schedule:

June 28, 2024	Deadline for informal exchange of discovery.
July 31, 2024	Deadline for service of initial written discovery requests.
September 3, 2024	Depositions may begin and may be conducted virtually.

October 2, 2024	Deadline for parties to disclose to each other the intention to use expert witnesses including field of study and possible topics.
October 25, 2024	Parties exchange expert reports.
November 8, 2024	Parties exchange rebuttal expert witness reports.
November 27, 2024	Close of all discovery.
January 13, 2025	Complainant's brief, proposed findings of fact, and appendix due.
February 12, 2025	Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix due.
February 28, 2025	Complainant's reply brief and responses to proposed findings of fact due.

The parties are encouraged to discuss settlement of this proceeding. However, such discussion will not stay other deadlines in the proceeding as engaging in discovery could provide evidence that assists the parties in resolving their differences, while delays hinder the parties' progress. If a settlement is reached, the parties must file a motion requesting approval of it along with a copy of the settlement. 46 C.F.R. § 502.72(a)(3).

Motions and settlement discussions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

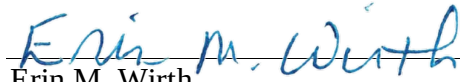
The parties should note that the Commission utilizes Westlaw. Citations to opinions on Lexis should include a parallel citation to Westlaw, if possible. Citations to Commission decisions may be made to official reporters including F.M.C., F.M.C.2d, Pike & Fischer Shipping Regulation Reports (S.R.R.), Westlaw, or Commission slip opinions. Every citation to a Commission case should include the case name, level (FMC or ALJ) and exact date of service (month/day/year). Selected FMC cases, including F.M.C. from 1919-1987 and F.M.C.2d from 2018 to present are available at www.fmc.gov/activity-logs. If a document from another source is cited, the decision or ruling must be transmitted via e-mail to judges@fmc.gov.

In addition, any filing submitted without page numbers, including on exhibits, may be rejected. The parties' briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party's] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e).
2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited, as nearly as practicable, to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The appendix should be in one PDF document, if practicable. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2 or RX 1, RX 2, etc.;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins and each exhibit should be clearly identified, for example, by a cover sheet or bookmark;
 - d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (*see* 46 C.F.R. § 502.7); and
 - e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to

Complainants' appendix rather than include a second copy of the same document in its own appendix.

The Initial Order has additional requirements, including for submitting confidential material. The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.


Erin M. Wirth
Chief Administrative Law Judge